

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-01

20230930-DK-BUTTERFLY-1, INC. v. BAL CONTAINER LINE CO., LIMITED

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“BBBY” or “Complainant”) and Respondent BAL Container Line Co., Limited (“BAL” or “Respondent”) (BBBY collectively with Respondent, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and proposed discovery schedule:

The Parties have already exchanged the initial disclosures required by 46 C.F.R. § 502.141(b). The Parties do not currently anticipate needing depositions or interrogatories in this case in excess of the amounts contemplated by 46 C.F.R. §§ 502.143 (i.e., no more than 20 depositions) and 502.145 (i.e., no more than 50 written interrogatories), respectively. Consistent with Paragraph 19 of the Presiding Officer’s January 17, 2025 Initial Order in this case, the Parties intend to meet and confer concerning a stipulation and proposed order regarding treatment of confidential documents and information exchanged and used in this case. Pursuant to 46 C.F.R. § 502.64(a), the Parties also held a preliminary conference with the Commission’s Office of Consumer Affairs and Dispute Resolution Services (“CADRS”) via a videoconference on February 24, 2025.

The Parties propose the below schedule, which provides for a discovery schedule in excess of 150 days. The parties are mindful of the 150-day time period set by 46 C.F.R. § 502.141(g);

however, the parties anticipate that documentary discovery in this proceeding will be extensive, complicated, and challenging. Among other things, there may be a significant number of depositions, possibly some involving overseas deponents, subpoenas for third-party witnesses here and abroad, and potentially issues regarding foreign discovery statutes. The Commission's regulations requiring that discovery be completed within 150 days of the service of a respondent's answer may be a reasonable time in a relatively straightforward case; however, it is not realistic for a case of this magnitude in which documentary discovery will involve a significant number of documents, depositions of as many as twenty witnesses per party, international discovery, and alleged damages of at least \$9.5 million.

The parties acknowledge that prompt resolution of claims and disputes arising under the statutes administered by the Commission is a laudable goal, one which the deadlines for issuance of initial and final decisions are intended to achieve, and that scheduling orders are an important part of this process. However, the parties wish to emphasize that it is not unusual for the deadlines for completion of discovery and/or for the issuance of initial and final decisions to be extended by administrative law judges and the Commission. The same rationale should apply at this initial stage, when a discovery schedule is being established.

There are also policy considerations which favor allowing sufficient time for a full development of the evidentiary record before an agency. *Hudson Shipping (Hong Kong) Ltd. d/b/a Hudson Express Lines – Possible Violations of Section 10(a)(1) of the Shipping Act of 1984*, 29 S.R.R. 1376, 1377 (ALJ 2002) (policy and responsibility of Commission and, by delegation of authority, presiding judge, to inquire into and consider all relevant facts; of even greater importance than the concept of fairness between the parties, as they maneuver to develop a record which fits their positions, is the need to ensure that justice is served and all relevant facts are considered by the Commission).

The parties believe that good cause has been demonstrated to modify the 150-day deadline provided for under 46 C.F.R. §502.141(g) and accordingly propose the following schedule:

EVENT	PROPOSED DEADLINE
Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories	March 4, 2025
Parties to serve objections and initial responses to initial RFPs	March 25, 2025
Parties to serve objections and initial responses to initial interrogatories	March 25, 2025
Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly)	April 8, 2025
Substantial completion of productions of documents and ESI in response to initial RFPs	May 31, 2025
Complete depositions of fact witnesses	July 15, 2025
Last day to serve interrogatories, requests for admission, and RFPs	August 7, 2025
Disclosure of initial expert reports, if any	August 7, 2025
Disclosure of rebuttal expert reports, if any	August 28, 2025
Complete expert depositions	September 19, 2025
Close of discovery	September 19, 2025
Complainant’s initial brief, proposed findings of fact, and appendix	October 24, 2025
Respondent’s opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	November 21, 2025
Complainant’s reply and responses to proposed findings of fact	December 19, 2025

Dated: February 24, 2025

Respectfully submitted,

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